

suit. For most of the history of the common law, judges had only a very limited immunity. It cannot be argued that there has been a growing realization of the appropriateness of immunity, for most of the expansion of immunity has been accomplished without any persuasive analysis. Judicial methodology has included various devices, such as formal application of inapplicable rules and definitions, one-sided policy analysis, and generalization from limited evidence. What remains is an unpersuasive historical argument for a broad rule of immunity...."

Feinman and Cohen further observe at page 254 that:

"Analyzing law is to a considerable extent analyzing history. Determining the law to be applied in a particular case through the analysis of precedent is a historical process. In the instance of judicial liability, however, our historical review demonstrates that statements such as those in Stump and Bradley are unworthy of the overwhelming weight they are given because they are poor history at two levels: the courts have not understood correctly the primary sources, the prior cases, and the courts have evaluated inadequately the circumstances out of which the earlier cases arose." (footnotes omitted).

The authors of that article thereafter pursue the historical background which gave rise to the Bradley and Stump decisions, which became the bedrock law upon which present concepts of judicial immunity spring. The Hunzikers subscribe to the premises and the arguments extended by Feinman and Cohen in their very ably written and documented article, but believe that the additional following observations should and must be made to extend such premises. (Doc. 69, P. 1-6).

A. THE DEVELOPMENT OF THE ENGLISH LAW CAN BE DIVIDED INTO TWO DISTINCT PERIODS:

1066 TO 1688 - CONCEPT OF SOVEREIGNTY IN THE KING RULING BY ASSERTED DIVINE RIGHT. THE WORD OF THE KING AND HIS JUDGES WAS THE LAW

1688 - PRESENT - CONCEPT OF CONSTITUTIONAL MONARCHY WITH THE ULTIMATE SOVEREIGNTY IN THE PEOPLE AND THE KING AND THE COURTS SUBJECT TO ACTS OF PARLIAMENT, WHICH ARE THE LAW.

For approximately five centuries Englishman sought to free themselves from the tyranny of the King and his emissaries, the King's Justices and Chancellors, claiming to rule by divine right. [See, speech of Sir Leoline Jenkins on the Exclusion Bill in 1680, wherein he stated, "I am of the opinion that the kings of England have their right from God alone; and that no power on earth can deprive them of it." Holdsworth, *infra*, p. 209, n. 2] Without being subject to the law of the land as determined by the Parliament, and without being subject to the natural consequences of their actions to those they might injure, English sovereigns continued to rule England. Such ruling included the forced adjournment of the Parliament and the imprisonment of its leaders. Such process culminated in the English Revolution and the institution of the "Constitutional Monarchy" wherein it came to be that even the King was subject to the "law of the land" as determined in large part by the Parliament.

In An Essay on the Trial By Jury, (1852) Lysander Spooner in Section VI addresses the coronation oath of the English Sovereigns. He finds that after the Magna Carta (1215) and until 1688 the oath was "to maintain the law of the land" or the "common law" as detailed in the Magna Carta. Ruling by claimed divine right, sovereignty resided in the feudal head, subject only to those exactments which Englishmen had obtained in the Great Charter, with foremost of these the right to trial upon the country (jury of peers). Spooner further states that in 1688, the coronation oath was changed by act of Parliament, to read:

"To govern the people of this kingdom of England, and the dominions thereto belonging, according to the

statutes in Parliament agreed on, and the laws and customs of the same.-- St. William and Mary, ch. 6. (1688). (emphasis added).

Such act of Parliament subjected former prerogatives of the King to those of the people acting through their Parliament. The SOURCE OF POWER to legislate had thus transferred to the People.

The Supreme Court long ago recognized that the concept that "the king can do no wrong" has no place in our government. Langford v. U.S., 101 U.S. 341.

B. DECISIONS OF THE UNITED STATES SUPREME COURT RELY UPON FLOYD V. BARKER (1607) AND THE CASE OF THE MARSHALSEA (1613), WHICH IS MISPLACED RELIANCE, FOR THOSE CASES AROSE IN THE PERIOD OF TIME ABOVE WHEN THE KING AND HIS COURTS WERE THE LAW, AND THE PEOPLE ACTING THROUGH THEIR PARLIAMENT HAD NOT YET ESTABLISHED THEIR RIGHT TO RULE THE REALM.

At the time of the Case of the Marshalsea and Floyd v. Barker, supra, the English were still in that long and arduous process of wresting from their King his presumed right to reign by "divine" providence. The two cases just mentioned were lifted from English law at a time when the King's word and the word of his Chancellor and of his Justices were the law, and the SOURCE of such power was claimed to be of divine origin. Action commenced against such Chancellor or Justice would clearly be a direct affront upon the King himself, and could not be countenanced! The King was Sovereign. The King was the head of the judicial system of the period. 6 Holdsworth, The Principles of Public Law, p. 208. After 1688, even the Sovereign was subject to the "law of the land" as set by the Parliament. That is, AFTER the two cases cited, the SOURCE OF POWER in England relating to sovereignty shifted to the PEOPLE.

Is it not ironic that the Courts of the United States, with

sovereignty plainly reposed in the PEOPLE should rely upon concepts of judicial immunity derived from a system assuming the power to govern by divine right? Is it not ironic that the Courts of this country have utilized those same concepts of claimed immunity to totally ignore the plain mandate of Amendment Fourteen and the elected Congress that "every" state actor shall be liable for the deprivation of federal rights under color of state law?

C. DECISIONS OF THE SUPREME COURT MISCONSTRUE THE CASES RELIED UPON, FOR THOSE CASES ASSUME JUDICIAL LIABILITY UNDER APPROPRIATE CIRCUMSTANCES.

The seminal case in the United States Supreme Court involving the question of liability of state judicial officers was Bradley v. Fisher, 80 U.S. 646 (1872). That case involved suit against the judge following his removing an attorney from the roster of those entitled to practice before the court because of insult upon its judge. Bradley relied upon old English cases such as the Case of the Marshalsea and Floyd v. Barker. Those cases clearly assumed judicial liability under several circumstances! Bradley glossed over such liability. Bradley became the bedrock case commonly cited in support of those later decisions addressing judicial immunity, but like the Bradley Court later Courts likewise chose to ignore the underlying assumption of judicial liability set forth in the old English cases.

D. DECISIONS OF THE SUPREME COURT, IN RELYING UPON EARLY ENGLISH CASES, DO NOT ADEQUATELY ADDRESS THE EFFECT OF THE INTERVENING DECLARATION OF INDEPENDENCE AND THE ADOPTION OF A WRITTEN CONSTITUTION INCLUDING AMENDMENT IX CONCERNING INHERENT RIGHTS OF THE CITIZEN.

The concept of judicial immunity was introduced into the legal system of the United States largely through the actions of Judge Kent of the New York Court in Yates v. Lansing, 5 Johns 282, (N.Y. S.Ct., 1810) aff'd 9 Johns 326 (N.Y. 1811). wherein the statement was made that the law of England had long extended to judges an absolute immunity from suit for derelictions. Judge Kent in such decision relied upon what is assumed to be the first case in the United States concerning judicial liability, which is the decision in Phelps v. Sill, 1 Day 315 (Conn., 1804). See generally, Suing Judges, History and Theory, Feinman and Cohen, 31 S.Car.Law Review 201,224 (1980). Such bold assertion was accepted and embodied into the law of the various states without close scrutiny until relatively recent times. Detailed study of the English Common Law discloses that such statement was certainly a gross exaggeration, if not actually untrue. The English common law did in fact recognize liability of judicial officers under various circumstances. See, Suing Judges, History and Theory, supra.

Two English cases relied upon in support of the concept of judicial immunity are the Case of the Marshalsea, 77 Eng. Rep. 1027 (1613); and Floyd v. Barker, 77 Eng. Rep. 1305 (Star Chamber) (1607). It should be specifically noted that those cases commonly cited in support of such immunity contained exceptions which limited the concept of such immunity. Such exceptions included judicial liability for:

1. actions in abuse or in absence of jurisdiction,
2. actions taken by inferior courts outside their powers to act, and
3. actions taken by the judicial officer for personal

reasons of self-interest or malice. See, Feinman and Cohen, *supra*, pp. 210-219.

The unquestioning importation to the colonies of such precedents lifted from the early English law without benefit of such exceptions has caused a substantial distortion in the development of the American law, which effectively adopted the rule but without its exceptions.

More importantly, the application of such early English cases to the law of the United States totally ignores the varying SOURCE of power of the judiciary under the two forms of government. Such difference was alluded to by Justice Douglas tangentially in Pierson v. Ray, 386 U.S. 547, 565, n. 5 (1967). Appellants assert that such difference in source of power is not a tangential reason, but rather a direct one for the most compelling of reasons. Such reason was addressed by Justice Miller in 1882 in *United States v. Lee*, (106 U.S. 171, 177)(cited in *Butz v. Economou*) where the issue before the Court was the right to possession of land and title derived from tax sale, and the question arose as to whether the United States or a State could be sued as an entity.

"But little weight can be given to the decisions of the English courts on this branch of the subject, for two reasons:

1. [not relevant here].
2. Another reason, of much greater weight, is found in the vast difference in the essential character of the two governments as regards the source and depositories of power.

Notwithstanding the progress which has been made since the days of the Stuarts in stripping the Crown of its powers and prerogatives, it remains true to-day that the monarch is looked upon with too much reverence to be subjected to the demands of the law, as ordinary persons are, and the king-loving Nation would be shocked at the spectacle of their Queen being turned

out of her pleasure garden by a writ of ejectment against the gardener. The Crown remains the fountain of honor, and the surroundings which give dignity and majesty to its possessor are cherished and enforced all the more strictly because of the loss of real power in the government.

It is not to be expected, therefore, that the courts will permit their process to disturb the possession of the Crown by acting on its officers or agents.

Under our system the people, who are there called subjects, are the sovereign. Their rights, whether collective or individual, are not bound to give way to a sentiment of loyalty to the person of a monarch. The citizen here knows no person, however near to those in power or however powerful himself, to whom he need yield the rights which the law secures to him when it is well administered. When he, in one of the courts of competent jurisdiction, has established his right to property, there is no reason why deference to any person, natural or artificial, not even the United States, should prevent him from using the means which the law gives him for protection and enforcement of that right.

By way of the Declaration of Independence the Colonies disavowed ancient concepts and announced to the world that:

We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain unalienable Rights, that among these are Life, Liberty and the pursuit of Happiness. That to secure these rights, Governments are instituted among Men, deriving their just powers from the consent of the governed, ..." (emphasis added).

Through the Constitution, the consent of the governed has been given to the elected branch (the Congress) to determine policy and to make the laws, but subject, nevertheless, to the expressed reservations of right in the people and in the states per the Ninth and Tenth Amendments.

E. DECISIONS OF THE SUPREME COURT, AFTER BRADLEY DO NOT GIVE SUFFICIENT RECOGNITION TO THE EFFECT OF ENACTMENT OF THE FOURTEENTH AMENDMENT AND SECTION 1983 UPON THE THINKING IN BRADLEY (WHICH WAS DECIDED WITHOUT REGARD TO AMENDMENT FOURTEEN OR SECTION 1983).

Mr. Justice Douglas, dissenting in Pierson v. Ray, 386 U.S.

547, 567 (1967) asks the questions:

"What about the judge who knowingly turns a trial into a "kangaroo" court? Or one who intentionally flouts the Constitution in order to obtain a conviction? Congress, I think, concluded that the evils of allowing intentional, knowing deprivations of civil rights to go unredressed far outweighed the speculative inhibiting effects which might attend an inquiry in a judicial deprivation of civil rights."

Those are questions which the 39th Congress had already answered a century prior. In consideration of the Fourteenth Amendment Representative Bingham stated to that Assembly:

"Those oaths have been disregarded; those requirements of our Constitution have been broken; they are disregarded to-day in Oregon; they are disregarded to-day, and have been disregarded for the last five, ten, or twenty years in every one of the eleven States recently in insurrection.

The question is, simply, whether you will give by this amendment to the people of the United States the power, by legislative enactment, to punish officials of States for violation of the oaths enjoined upon them by their Constitution? That is the question, and the whole question."

* * * *

"As a further security for the enforcement of the Constitution, and especially of this sacred bill of rights, to all the citizens and all the people of the United States, it is further provided that the members of the several State Legislatures and all executive and judicial officers, both of the United States and of the several States, shall be bound by oath or affirmation to support this Constitution. The oath, the most solemn compact which man can make with his Maker, was to bind the State Legislatures, executive officers, and judges to sacredly respect the Constitution and all the rights secured by it. And yet there is still another provision lest a State Legislature, with the approval of a State Executive, should in disregard of their oath, invade the rights of any citizen or person by unjust legislation, violative alike of the Constitution and the rights secured by it, which is very significant and not to be overlooked, which is,

'And the judges of every State shall be bound by the Constitution of the United States, anything in the constitution and laws of any State to the contrary notwithstanding.'" Bingham, THE CONGRESSIONAL GLOBE,

